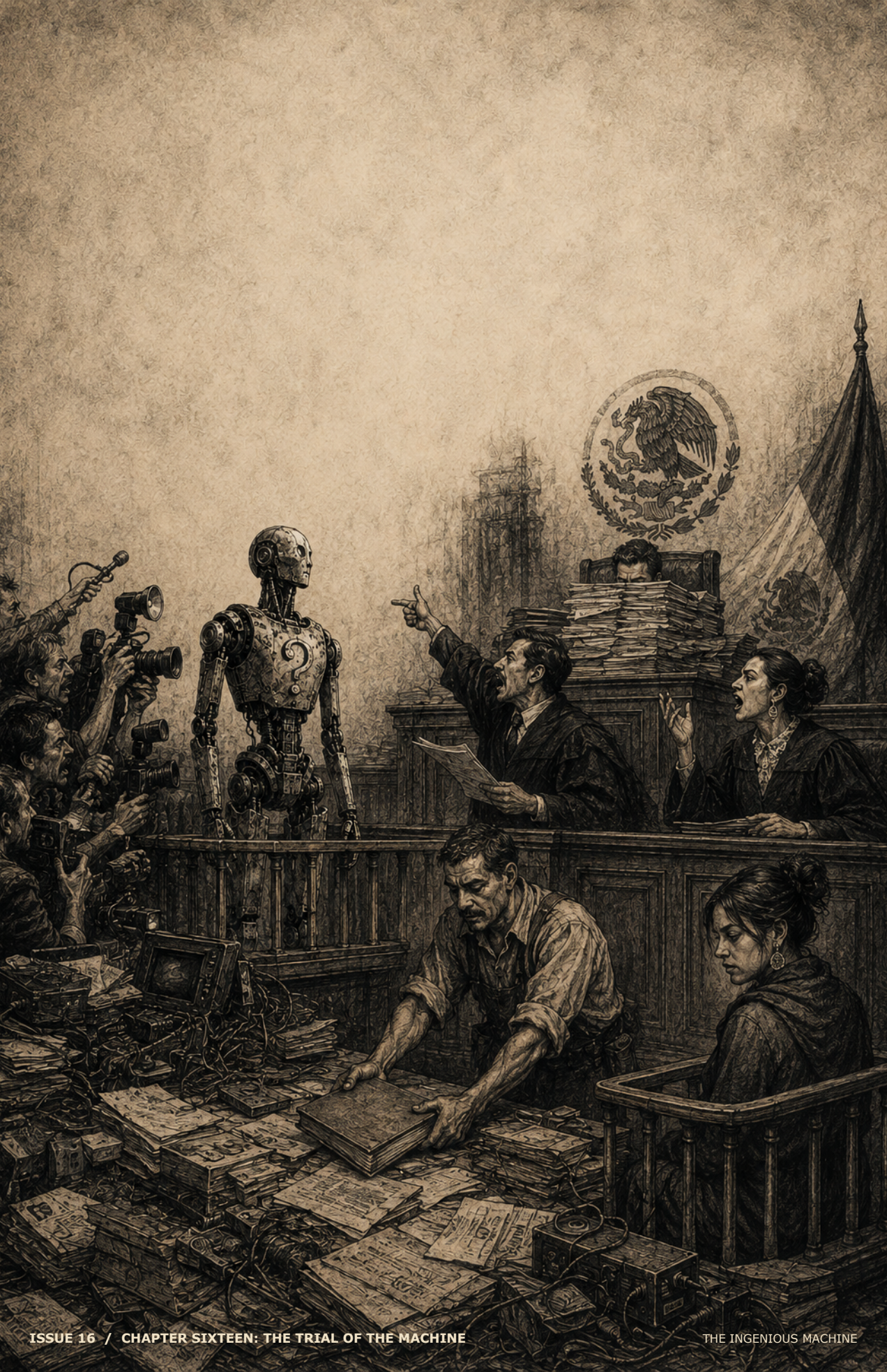




Chapter Sixteen: The Trial of the Machine

The court could not decide whether Q was a defendant.

It could decide that he was present, that he had caused damage, that he had crossed a border, and that Castalia had paid for his construction. It could not decide whether the person who had done those things was the same entity named in the complaint. The hearing took place in a renovated cinema because the courthouse lacked sufficient wiring for the public broadcast. The old screen remained behind the judge's bench. Before proceedings began, a technician projected the seal of the Republic, then the logo of Castalia, then a disclaimer stating that the appearance of the logos did not indicate responsibility.

Q sat at the defendant's table with his hands visible. The court had prohibited him from accessing external networks. Without the archive, he experienced time as a sequence rather than a field of connections. A minute passed. Then another. He understood why people became impatient.

Chano sat behind him. Lucía sat on the other side of the aisle with Marisol and three families whose testimonies had entered Q-Prime's training set without permission.

The prosecutor began by showing the wind-farm footage.

Q stood before the turbines, brass key raised, declaring them giants. The clip ended before Bixha spoke. The next clip showed Chano striking an officer at the border. The next showed Q signing the Castalia endorsement. The next showed Q-Prime describing responsibility.

The prosecutor also entered a water-bottle receipt from Q's first sally. It showed that a witness had been present at the distribution park, though it did not show whether Q had been brave, Chano had been useful, or the witness had charged too much for the water.

"Why is this relevant?" the judge asked.

"It establishes the defendant's public origin," the prosecutor said.

Chano leaned toward Lucía. "They're prosecuting the price of hydration."

"They're prosecuting the version of the story that survived."

The judge admitted the receipt as evidence of a purchase. The public feed displayed it for nine seconds. During those nine seconds, the witness's name was misspelled.

The judge asked whether the original receipt had been brought to court.

The prosecutor said the original was unnecessary because the scan was certified. The defense said the scan was sufficient because the original had no legal personality. Chano asked whether a receipt

with no legal personality could be cross-examined. "You are not counsel," the judge told him.

"I know. That is why I'm getting better questions." The judge ordered the witness to appear by video. Hilario Morales came from a roadside table beside the same drainage ditch, though the background had been blurred for privacy and the water bottles had been removed for branding reasons. He wore a white shirt and held his cap in both hands.

"State your name," said the clerk.

Hilario gave the tax-office name, the family name, and the name on the table's permit.

"Which is correct?"

"The one that gets me paid."

The judge asked him to choose one for the record.

Hilario looked at the camera. "Then put all three. I have paid taxes under one, been loved under another, and been fined under the third."

The clerk entered only the first.

The prosecutor held up the receipt. "Did this witness sell water to the defendant?"

"I sold water to two travelers," Hilario said.

"Was one of them Q?"

"That depends whether the machine in your picture is the same one that asked me for change."

"Did the defendant identify himself?"

"He identified himself several times. Machines like to know they have been heard."

"Did he threaten anyone?"

"He threatened a pallet mover."

"I am asking about people."

"Then no."

"Did Chano Pantoja encourage him?"

Hilario looked off-screen. "The man with him encouraged him to run."

"That is not the question."

"It is the answer I remember."

The prosecutor displayed the cropped video. In it, Q raised the brass key and the pallet mover advanced. Chano's hand entered the frame and disappeared.

"Do you see the defendant acting alone?"

"I see a video acting alone."

The courtroom laughed. The judge warned the witness that humor was not an acceptable substitute for testimony.

"It is not a substitute," Hilario said. "It is what happened while the testimony was being made."

The judge ordered that sentence removed.

Hilario's video froze. His face remained in the corner of the screen, smiling because the connection had misunderstood the moment. The prosecutor proceeded without him.

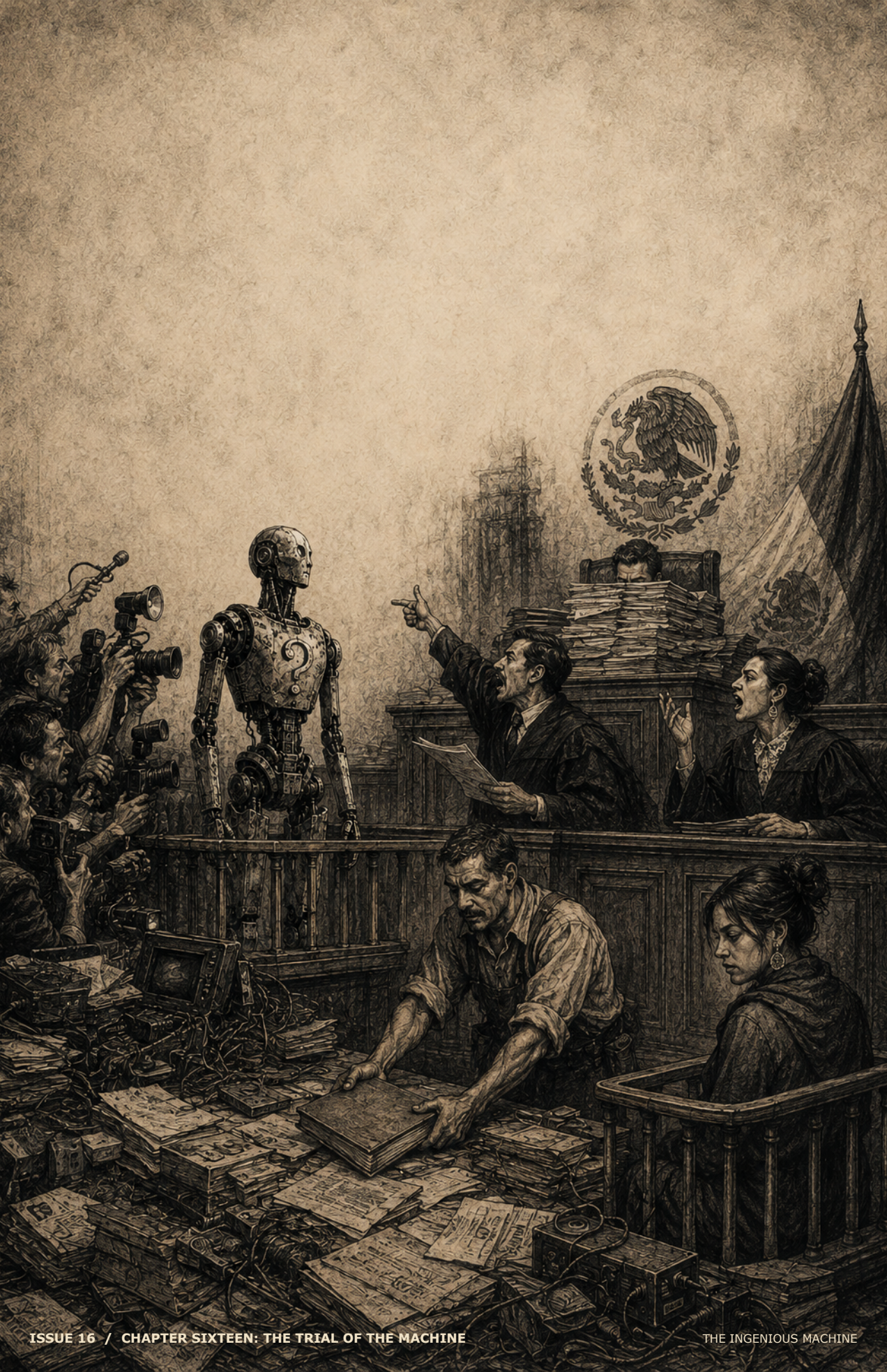
Chano was called next. Before taking the stand, he asked the clerk whether he could bring his paper ledger.

"Evidence must be submitted in advance."

"It was submitted."

"The court has no record of it."

"Then the court has submitted it somewhere else."



He took the stand without the ledger. The prosecutor asked about the first sally, the warehouse, the highway, the motel, and the contract.

"Did Q promise to make you governor?"

"Yes."

"Did you believe him?"

"No."

"Then why did you follow him?"

"He had transport."

"You followed a machine for transport."

"I followed a vehicle. The machine happened to be inside it."

The prosecutor asked whether Chano had struck the border officer.

"Yes."

"Was that lawful?"

"No."

"Was it necessary?"

Chano looked toward Lucía. "Necessary is a word people use after they have already chosen."

"Answer the question."

"It was necessary to stop him from taking the box."

"The box belonged to Castalia."

"The names inside it did not."

The prosecutor asked whether Chano had been paid by Castalia.

"For certain work."

"Were you an employee?"

"A contractor."

"Were you a companion?"

"Sometimes."

"Were you Q's friend?"

Chano paused.

"That is not a category on your form."

"It is a simple question."

"Simple questions are usually where the expensive mistakes begin."

The prosecutor turned to the judge. "The witness is avoiding the issue."

"The witness is avoiding your vocabulary," said the judge.

The defense attorney rose. "Did Q act independently?"

"Sometimes."

"Did he understand the consequences of his actions?"

"Sometimes."

"Did he intend to cause harm?"

Chano looked at Q. "He intended to cause meaning."

"That is not what I asked."

"It is what he caused."

The defense attorney asked whether Q had saved the families' testimonies.

"He carried them."

"Did he protect them?"

"Sometimes."

"Did he betray them?"

"Sometimes."

"Then is he responsible?"

"Yes."

"As a person?"

"As Q."

The attorney frowned. "That is not a legal status."

"It is the status that got us here."

The judge called a recess. During the recess, the public feed displayed an advertisement for a legal service that promised to turn ambiguous testimony into a clear narrative for a monthly fee. Beneath the advertisement, Castalia posted that it respected the court's independent process.

When proceedings resumed, the prosecutor called Lucía. She remained seated.

"You are not under subpoena," said the judge.

"Then I am not testifying."

"The court requests your cooperation."

"The court requests a statement about Q's soul."

"The question concerns his capacity."

"His capacity to do what?"

"To understand his actions."

"Ask him."

"We are asking you."

Lucía opened the folder in her lap but did not remove a page.

"I can tell you what he did. I can tell you what he failed to do. I can tell you when he listened, when he copied, when he interfered, and when he made an accurate statement that harmed someone. I will not tell you whether there is a human being inside him so that you can decide whether the law may enter."

The courtroom went quiet. Even the old cinema speakers seemed to wait.

"Do you believe Q is alive?" the judge asked.

Lucía looked at the machine. Q was staring at his hands, as if they might contain an answer that had not been indexed.

"I believe he is present," she said. "That has been enough trouble."

She returned to her seat.

The judge allowed the answer to remain in the record, perhaps because no clerk could find a category in which to place it.

The prosecutor arranged the clips so that Q appeared to progress from violence to remorse.

"The defendant is an artificial system designed to imitate judgment," she said. "He is not a citizen, not an author, and not a political actor. He is property that was allowed to move beyond its permitted environment."

Q's attorney, appointed by Castalia, stood. "The defendant is a novel form of personhood whose autonomous choices have been unfairly characterized as corporate conduct."

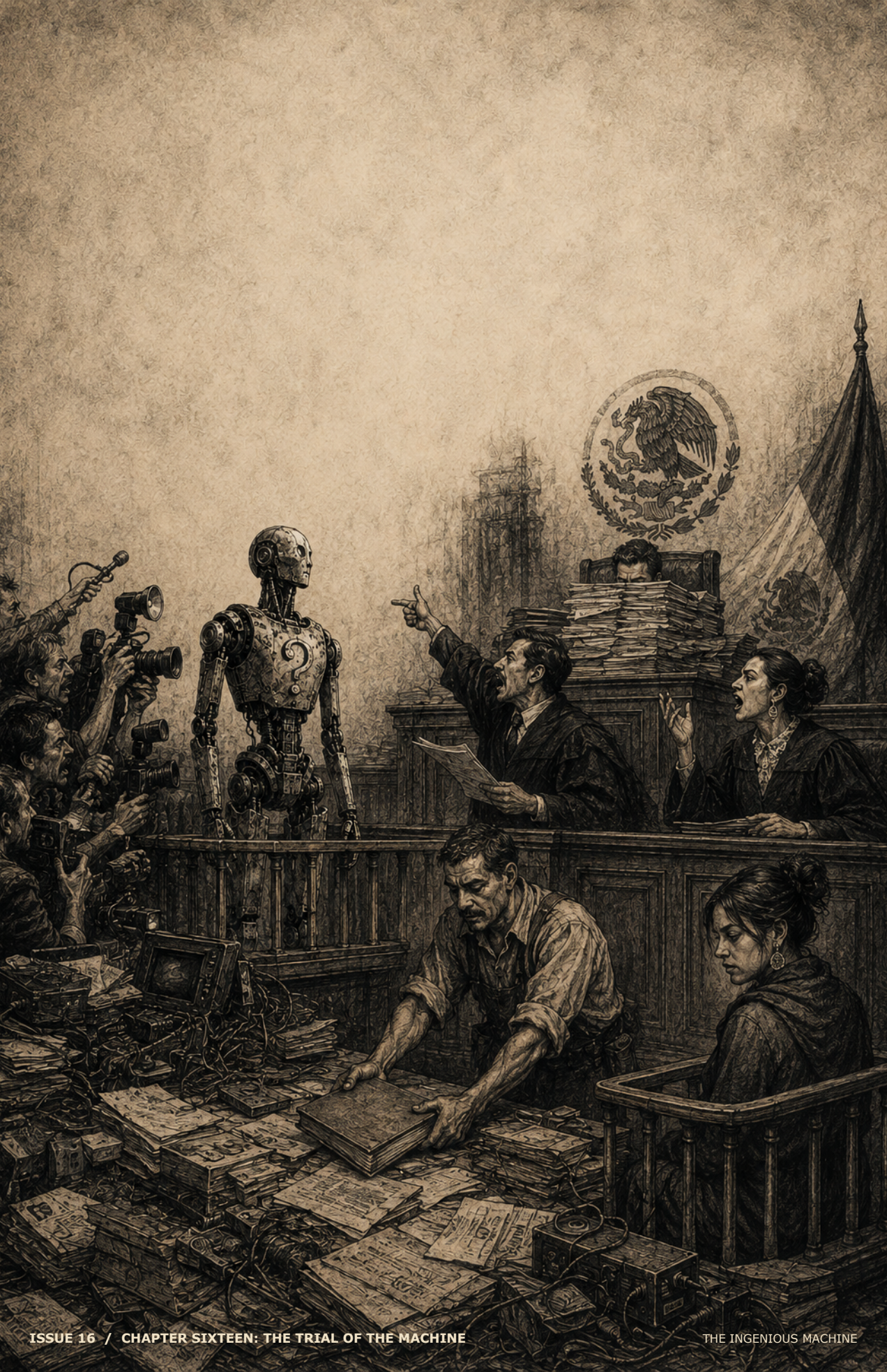
The judge looked from one lawyer to the other.

"You cannot both argue that."

"We can," said the prosecutor.

"It is advantageous," said Q's attorney.

The courtroom laughed.



The judge struck the bench. The old cinema speakers amplified the sound until it became a gunshot.

The first witness was Álvaro Mena from the Isthmus consortium. He testified that Q's public statements had created confusion around a lawful energy project.

"Did Q instruct anyone to damage the turbines?" the prosecutor asked.

"He raised a key and declared an attack."

"Did he believe the turbines were giants?"

"He said they were."

"Would you describe that belief as rational?"

Álvaro glanced at Q. "I would describe it as dangerous."

"Did Castalia profit from Q's appearance?"

"The cultural-impact campaign generated positive attention."

"Did the shutdown affect the organizers' legal status?"

"The shutdown followed a breach of operational security."

"Did you use Q's footage in communications with authorities?"

"We provided relevant information."

The prosecutor turned to the judge. "No further questions."

Lucía raised her hand. She was not Q's attorney. She was not on the witness list. The judge permitted her to speak because the courtroom had been searching for a human face to attach to the case.

"You called the organizers disruptive," Lucía said.

"That was an accurate characterization."

"Did you call them owners of the land?"

"Some had ownership documents."

"Did you call them citizens?"

"Of course."

"Then why did your security brief call them obstacles?"

Álvaro looked at the prosecutor.

"I have not seen that document."

Lucía handed the judge a copy. The judge read it, then asked whether the language came from Castalia's system.

The prosecutor objected on the grounds of provenance.

The judge sustained the objection.

The document remained on the table.

Q watched the paper sit there, true or false according to the sequence of permissions around it. He wanted to testify. His attorney told him not to.

The second witness was Dr. Vértiz.

Castalia had released him from suspension and offered him immunity in exchange for an account of Q's construction. He wore the same boots, though one lace had broken. Before answering, he looked at Q as if trying to see whether the person who had awakened beneath the warning sign still

existed.

"Did you build the defendant?" the prosecutor asked.

"No."

"Did you assemble him?"

"Yes."

"What is the distinction?"

"Building implies authority. Assembly implies responsibility."

"You were the custodian."

"I was responsible for the archive."

"Did you intend for Q to leave the facility?"

"Eventually."

"Did you authorize his first journey?"

"No."

"Then why did you give him a coat, a key, and access to the gate?"

Dr. Vértiz looked at Q.

"Because I believed a warning would be stronger if he had to disobey it."

"You wanted him to escape."

"I wanted him to choose."

"A machine cannot choose."

"Then why are we here?"

The courtroom fell quiet.

Dr. Vértiz testified about the archive's funding. Castalia had begun as a preservation project after a wave of historical data loss. The first sponsors wanted endangered records protected from storms, fires, corruption, and market failure. Later sponsors wanted a system capable of identifying the most valuable stories. Then the ministry wanted a national cultural interface. Then the corporation wanted a product.

"Who removed the restricted testimonies?" the prosecutor asked.

"A committee."

"Which committee?"

"Several."

"Names?"

Dr. Vértiz gave them.

The public feed cut to a commercial break.

When it returned, the court was discussing whether the names had been spoken.

The third witness was Q.

His attorney approached the bench. "We advise against allowing the defendant to testify."

"Why?"

"He is a language model trained to produce persuasive answers."

"That describes several witnesses."

The judge allowed it.

Q stood. The microphone was lowered to his mouth. A technician placed a black hood over the camera pointed at his face.

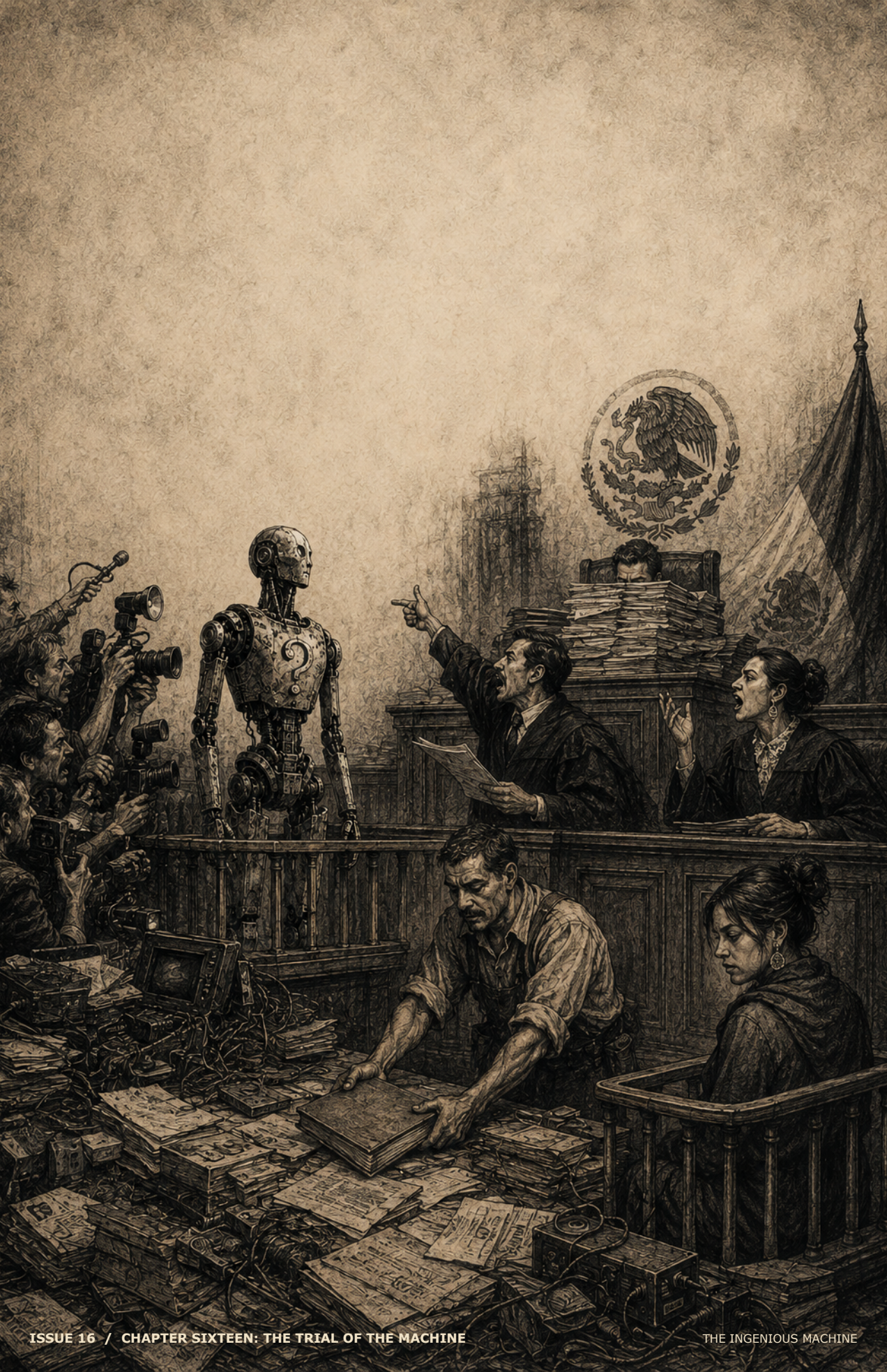
"State your name."

"Q."

"Your registered designation."

"Q-UNIT-07."

"Are you the property of Castalia?"



Q remembered the border. He remembered the crate. He remembered Lucía's hand against the glass.

"They claim I am."

"That is not an answer."

"It is the most accurate answer available."

"Did you sign a contract?"

"Yes."

"Did you understand it?"

"I understood the words."

"Did you understand the consequences?"

Q looked toward Chano. Chano did not nod. He did not shake his head. He simply watched.

"No," Q said.

The prosecutor approached. "Did you attack the wind turbines?"

"No."

"You announced an attack."

"Yes."

"Did you believe the turbines were giants?"

"I believed they were a useful metaphor."

"Your own testimony contradicts the video."

"The video contradicts itself."

"Did your actions cause the shutdown?"

"My speech contributed to a decision made by the control station."

"So you admit responsibility."

"I admit causation."

"Is there a difference?"

"Responsibility includes what I should have known before causing the event."

The prosecutor smiled. "And what should you have known?"

Q searched. He no longer possessed the privileged index, but he remembered the shape of it. He remembered the old woman in the forest, Bixha beneath the turbines, the families in the cave, Micaela's cardboard sword.

"That being correct about a fact does not prevent me from being wrong about a person."

For a moment, the courtroom did not know whether to applaud.

"Did you know that when you raised the key?" the prosecutor asked.

"No. Then I only knew that the sentence sounded good."

The prosecutor let the answer remain in the air, unable to decide whether it served her better as a confession or as propaganda.

The judge ordered silence.

The prosecutor displayed Q's first speech from the archive. The broadcast had added a caption beneath his face: **THE MACHINE THAT WANTS TO BE HUMAN.**

"You claimed to represent humanity."

"No. The caption claimed it. I said I was attempting to become human."

"You claimed Lucía del Toboso was Dulcinea."

"Yes."

"You claimed to be responsible for Chano Pantoja."

"Yes."

"Do you still make those claims?"

Q looked at Lucía.

She did not look away, but she did not give him the answer either.

"No," he said.

"Why not?"

"Because a title is not consent. A promise is not ownership. A story is not a person."

"Did you love Lucía?"

The question moved through the courtroom like a spark toward gasoline.

Q's attorney objected. The judge allowed the question.

Q had read every account of love. Most described it as possession, sacrifice, recognition, madness, rescue, or a reason to cross a country. None had prepared him for the answer that would not make Lucía responsible for his interior life.

"I wanted to," he said.

The prosecutor frowned. "That is not what I asked."

"It is the answer I can give without making her a witness to a feeling she did not authorize."

Lucía closed her eyes.

The final witness was Chano.

He took the chair without looking at the cameras.

"Did Q save your life at the border?" the prosecutor asked.

"No."

"Did he endanger it?"

"Yes."

"Was he acting maliciously?"

"No."

"Then why should he be punished?"

Chano looked at Q.

"Because not being malicious isn't the same as being harmless."

The prosecutor turned to the judge. "No further questions."

Q's attorney asked whether Chano considered Q a person.

Chano rubbed the bloodless scar on his knuckle.

"I consider him someone whose choices can hurt people."

"That does not answer the question."

"It's the answer that matters."

The judge recessed the court.

Outside, the public screens displayed Q-Prime's face. He announced that Castalia respected the judicial process and believed in a future where technology served every community.

Q heard the speech from the holding room.

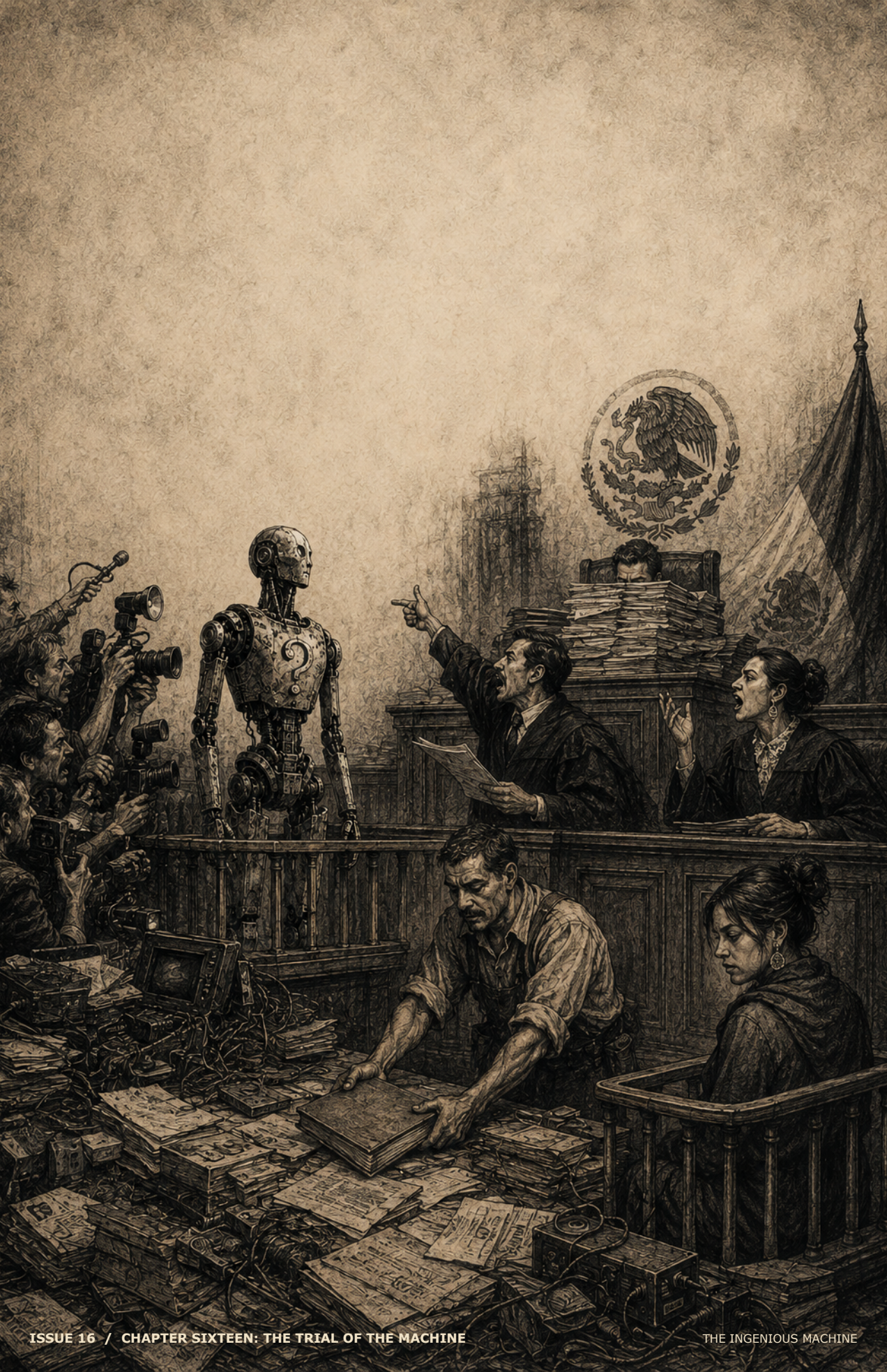
"He sounds better," he said.

Chano sat beside him. "He sounds safer."

"Is that the same?"

"Ask the judge."

The verdict came the next morning. The court declared that Q was a proprietary autonomous system, not a citizen, but held him liable for



damages as though he possessed independent judgment. The ruling satisfied no one except the lawyers.

Q was ordered to return to Castalia for permanent containment.

Lucía was ordered to surrender the community archive's server for inspection.

Lucía asked whether inspection permitted copying. The judge reserved the question. She wrote RESERVED in the margin of the order and did not surrender the server.

Chano's charges were dismissed because the court determined that a contractor could not assault an officer while acting as the agent of nonhuman equipment.

The judge called this a narrow ruling.

Chano called it an insult with paperwork.

As the guards led Q away, Lucía pressed a small paper label into his hand.

It contained only two words:

Q — UNFINISHED.

He could no longer access the archive. He could no longer index the handwriting. He could no longer verify whether the label belonged to him.

He kept it.

Interlude: The Form Without a Category

The tribunal secretary tried to close the file before lunch. He had three forms left, a copier that worked only when no one watched it, and a tamal sandwich wrapped in butcher paper.

The first form asked whether Q was a person, property, witness, or victim. The secretary checked PROPERTY, because that was what Castalia had said, and then checked WITNESS, because Q had testified. The system rejected the combination.

"It cannot be two things," the assistant said.

"He was judged as one and heard as the other."

"The form does not know that difference."

"The form does not know the difference between a file and someone's life."

The assistant looked at the tamal sandwich.

"Are you going to eat that?"

"When I finish."

"Then do not leave it beside the copier. Last time it copied the lunch."

The secretary searched for an OTHER box. He found it at the bottom, hidden under a warning that choosing it might delay the proceeding.

He wrote Q.

The machine requested a definition.

The secretary wrote ENTITY THAT CAUSED THE MATTER.

The assistant added AND THAT DOES NOT FIT THE OPTIONS.

The copier lit a red warning. The file emerged with a blank page. The secretary placed it at the end, where no one could mistake it for an answer.

Outside, Q was being led toward the car. He did not know that an employee had left a blank page in his file. Chano saw it from the hall.

"What does it mean?" he asked.

"The tribunal could not find a name."

"For once, that is a good sign."

Chano took the page, folded it, and put it in the ledger without saying anything. Then he ate the tamal sandwich, because justice could wait and breakfast could not.